

RHEX Trade-In Terms & Conditions

Effective date: [Insert date]

These Trade-In Terms & Conditions apply when you submit a device for trade-in through RHEX.

RHEX is operated by **Reflow Hub Pty Ltd** (ABN 58 608 364 307) ("RHEX", "we", "us" or "our").

By submitting a Trade-In Order or sending a Device to us, you agree to these Terms.

These Terms should be read together with our Privacy Policy and any specific promotional terms that apply to your Trade-In.

1. Definitions

In these Terms:

Device means the mobile phone, tablet, wearable or other electronic device submitted by you for trade-in.

Indicative Quote means the estimated trade-in value shown to you before we physically inspect your Device.

Final Offer means the amount we offer to purchase your Device after inspection, testing and verification.

Trade-In Order means your request to sell a Device to RHEX through our website or another approved RHEX channel.

2. Eligibility

To use RHEX Trade-In, you must:

- be at least 18 years old;
- have legal capacity to enter into a binding agreement;
- be the legal owner of the Device or be properly authorised by its owner to sell it; and
- provide accurate and complete information requested by RHEX.

We may request identification, proof of purchase, proof of ownership or other information reasonably required to verify a Trade-In, prevent fraud or comply with applicable law.

We may refuse or suspend a Trade-In if satisfactory information is not provided.

3. Your ownership of the Device

By submitting a Device, you represent and warrant that:

- you own the Device or are authorised by its legal owner to sell it;
- the Device has not been stolen, unlawfully obtained or reported lost;
- the Device is not subject to any finance arrangement, security interest, lease, rental arrangement or other third-party claim;
- the Device's IMEI, serial number or other identifier has not been unlawfully altered or tampered with; and
- information you provide to us about the Device is accurate to the best of your knowledge.

We may conduct checks concerning a Device's IMEI, serial number, ownership status, blacklist status or other relevant information.

If we reasonably suspect that a Device is stolen, lost, fraudulent, counterfeit or otherwise unlawfully supplied, we may suspend the Trade-In and payment while we investigate and may provide information on the Device to law enforcement or another authority where required or permitted by law.

If payment has already been made in circumstances involving fraud, misrepresentation or lack of legal title, we may seek recovery of that payment.

4. Indicative Quotes

Any quote provided before physical inspection of your Device is an **Indicative Quote only**.

An Indicative Quote is based on information available to us at the time, which may include:

- Device model;
- storage capacity;
- colour or variant;
- reported condition;
- functionality;
- age;
- market value; and
- any applicable promotion.

An Indicative Quote does not constitute an unconditional offer to purchase your Device.

All Trade-Ins are subject to inspection, diagnostics and verification.

5. Quote validity

Unless otherwise stated, an Indicative Quote is valid for **14 days from the date it is issued**.

Your Device must be **received by RHEX within that 14-day period** for the Indicative Quote to remain valid.

If your Device arrives after the quote has expired, we may reassess its market value and provide a new Indicative Quote or Final Offer.

You may reject any revised price and request return of the Device in accordance with these Terms.

6. Shipping your Device

Where available, RHEX may provide you with a digital shipping label, QR code or shipping instructions to assist you in sending your Device to us.

The provision of a shipping label, QR code or shipping instructions does **not** mean that RHEX assumes risk for your Device while it is in transit.

You are responsible for:

- securely packaging the Device;
- choosing packaging reasonably suitable for protecting the Device in transit;
- ensuring that the Device cannot move excessively within the package;
- complying with the carrier's packaging and dangerous-goods requirements; and
- correctly lodging the parcel with the nominated carrier.

We recommend using a suitable rigid box and adequate protective cushioning such as bubble wrap or an equivalent protective material.

You should retain your lodgement receipt and tracking information.

Where available, you may choose to purchase additional insurance, compensation cover or other transit protection directly from the carrier.

7. Risk in transit

You remain responsible for the Device until it is physically received by RHEX or our authorised processing facility.

RHEX is not responsible for loss, theft or damage occurring before receipt of the Device by us, including where:

- we provided the shipping label or QR code;
- the carrier loses or damages the parcel; or
- the Device is inadequately packaged.

We will assess the Device based on the condition in which it is received.

Nothing in this clause excludes any right or remedy that cannot lawfully be excluded.

8. What to remove before shipping

Before sending your Device, you should:

- back up any information you wish to retain;
- remove SIM cards and removable memory cards;
- remove cases, chargers and other accessories unless specifically requested;
- sign out of personal accounts;
- disable Find My, Activation Lock and similar security features; and
- remove PINs, passwords or other access restrictions where reasonably possible.

Unless otherwise agreed, accessories, SIM cards, memory cards, packaging and other items sent with a Device may not be returned and may be recycled, securely destroyed or otherwise disposed of.

9. Personal data and data erasure

You are responsible for backing up any information you wish to retain before sending your Device.

By submitting a Device to RHEX, you authorise us and our service providers to:

- access the Device to the extent reasonably necessary to assess it;
- perform diagnostic testing;
- factory-reset the Device;
- erase data;
- remove software configurations where appropriate; and
- otherwise process the Device for the purposes of completing the Trade-In.

Data erasure may be irreversible.

RHEX is not responsible for loss of personal data stored on a Device submitted for Trade-In, except to the extent that liability cannot lawfully be excluded.

Where a Device cannot be securely erased, we may reject the Device or process it through an alternative secure workflow.

10. Device locks and account restrictions

Devices should be submitted without account or security restrictions including, where applicable:

- Apple Activation Lock or Find My;
- Google Factory Reset Protection;

- Samsung or other manufacturer account locks;
- Mobile Device Management enrolment;
- enterprise enrolment restrictions; or
- PIN, password or screen-lock restrictions that prevent assessment.

If a Device remains locked, we may contact you and give you an opportunity to remove the restriction remotely.

While the restriction remains in place, we may suspend assessment and payment.

If the restriction is not removed within the timeframe specified by us, we may reject the Trade-In.

Any uncollected Device will be dealt with in accordance with applicable law.

11. Inspection and diagnostics

After receiving your Device, we may inspect and test it to verify:

- model and storage capacity;
- IMEI and serial number;
- cosmetic condition;
- display and touchscreen condition;
- battery condition;
- cameras;
- buttons;
- charging functionality;
- connectivity;
- biometric functions;
- audio;
- water or liquid damage;
- signs of repair or component replacement;
- software or security restrictions; and
- any other matter reasonably relevant to its condition or resale value.

We may use third-party diagnostic or processing providers to perform some or all of these checks.

12. Regrading and revised offers

Your Final Offer may differ from the Indicative Quote if our assessment identifies a difference in the Device's:

- model;
- storage capacity;
- specifications;
- reported condition;

- cosmetic condition;
- functionality;
- battery condition;
- repair history;
- parts or component authenticity;
- security or account status;
- IMEI or blacklist status; or
- other material attribute affecting value.

We may also revise an Indicative Quote where it resulted from an obvious pricing, system, typographical, data-feed or technical error.

Where the Final Offer is lower than the Indicative Quote, we will notify you of the revised amount.

13. Accepting a Final Offer

If our assessment confirms that your Device qualifies for the Indicative Quote, we may treat the confirmed amount as the Final Offer and proceed with the Trade-In without requiring additional approval.

If we reduce the amount, you will be given the opportunity to:

- accept the revised Final Offer; or
- reject it and request return of your Device.

A materially reduced Final Offer will not be treated as accepted merely because you do not respond.

We may set a reasonable period for you to respond to a revised Final Offer and may send reminder notices.

If you do not respond, we may continue to hold the Device while attempting to contact you. Any Device that remains unclaimed will be dealt with in accordance with applicable law.

14. Right to reject a Device

We may reject a Trade-In where the Device:

- differs materially from the Device submitted in the Trade-In Order;
- is counterfeit or not an authentic supported Device;
- is reported stolen, lost or blacklisted;
- has an altered or invalid IMEI or serial number;
- is subject to an unresolved finance or ownership issue;
- poses a health, safety or battery hazard;
- is excessively contaminated;
- cannot reasonably be assessed;

- cannot be securely processed because of security restrictions;
- falls outside our accepted Device categories; or
- appears to involve fraud or unlawful activity.

Where reasonably practicable and lawful, we will notify you if a Device is rejected.

15. Repairs and replacement parts

Our assessment may take into account whether a Device:

- has previously been repaired;
- contains aftermarket or non-original parts;
- is missing components;
- has been modified;
- has been rooted, jailbroken or otherwise altered; or
- has repairs that materially affect its functionality, safety or resale value.

The presence of repaired or replacement components does not necessarily mean the Device will be rejected, but it may affect the Final Offer.

16. Return of a Device

If you reject a revised Final Offer, we will ordinarily arrange one standard return shipment to an Australian address provided by you at no additional charge, unless otherwise stated before the Trade-In is submitted.

You are responsible for providing an accurate and deliverable return address.

If a returned Device:

- is refused;
- cannot be delivered because of incorrect address information;
- is not collected; or
- must be sent again at your request,

we may require you to pay the reasonable cost of additional shipping.

A Device may not be returned where doing so would be unlawful or where it has been provided to an authority in connection with a lawful investigation.

17. Unidentified or unmatched Devices

If we receive a Device that cannot reasonably be matched to an existing Trade-In Order, we may hold it while attempting to identify its owner.

Receipt of an unidentified Device does not, by itself, transfer ownership of that Device to RHEX.

We may request information reasonably necessary to verify ownership before returning or processing the Device.

Unclaimed Devices will be dealt with in accordance with applicable law.

18. When the sale becomes binding

Where the Final Offer equals the accepted Indicative Quote, the sale becomes binding when RHEX completes its assessment and confirms that the Device qualifies for that amount.

Where the Final Offer differs from the Indicative Quote, the sale becomes binding when you accept the revised Final Offer.

At that point, ownership and title to the Device transfer to RHEX and RHEX may sell, transfer, repair, refurbish, recycle, dismantle or otherwise deal with the Device.

You cannot cancel or reverse the Trade-In after title has transferred, except where required by law.

19. Payment

We will ordinarily make payment within **3–5 business days** after:

- a binding sale has been formed under clause 18;
- any required identity or ownership verification has been completed; and
- you have provided valid payment information.

Payment may be made by PayID, bank transfer or another payment method offered by RHEX.

You are responsible for ensuring that payment details supplied to us are accurate.

We are not responsible for delay or loss caused by incorrect payment details provided by you.

If a payment fails, is rejected or is returned, we may contact you to obtain updated payment information.

Any duplicate or erroneous payment remains recoverable by RHEX.

20. Promotional Trade-In offers

From time to time, a Trade-In may qualify for a promotional bonus or additional value.

Promotional amounts may be subject to separate eligibility criteria, promotional periods or partner terms.

Unless otherwise stated, any promotional amount is separate from the underlying assessed value of the Device.

A Device that is regraded may cease to qualify for all or part of a promotion where the applicable promotional conditions are no longer satisfied.

21. Fraud and misuse

You must not use RHEX Trade-In to:

- submit Devices you do not own;
- knowingly provide false or misleading information;
- manipulate Device identifiers;
- abuse promotions;
- create fraudulent transactions; or
- engage in unlawful activity.

We may cancel or suspend Trade-In Orders where we reasonably suspect fraud, misuse or unlawful conduct.

22. Limitation of liability

To the maximum extent permitted by law, RHEX will not be liable for:

- data you fail to back up before submitting a Device;
- loss or damage occurring before the Device is received by us;
- loss arising from inaccurate information supplied by you;
- accessories or removable media sent contrary to our instructions; or
- indirect or consequential loss arising from a Trade-In.

Nothing in these Terms excludes, restricts or modifies any consumer guarantee, statutory right or remedy that cannot lawfully be excluded, restricted or modified.

23. Privacy

We collect, use and disclose personal information in accordance with our Privacy Policy.

Information collected in connection with a Trade-In may include:

- your name and contact details;
- payment information;
- Device model;
- IMEI and serial number;

- diagnostic and grading information;
- identity or ownership verification information; and
- transaction and shipping information.

We may disclose relevant information to service providers, logistics providers, diagnostic providers, payment providers, law enforcement agencies and other parties where reasonably necessary to operate the Trade-In service or comply with applicable law.

24. Changes to these Terms

We may update these Terms from time to time.

The Terms that apply to your Trade-In will ordinarily be those in effect when you submit your Trade-In Order, except where a change is required by law or agreed with you.

25. Australian Consumer Law

Nothing in these Terms is intended to exclude or limit any rights you have under the **Competition and Consumer Act 2010 (Cth)**, including the Australian Consumer Law, or any other rights that cannot lawfully be excluded.

26. Governing law

These Terms are governed by the laws of New South Wales, Australia.

You submit to the non-exclusive jurisdiction of the courts of New South Wales and any courts entitled to hear appeals from them.

27. Contact

For questions about a Trade-In, please contact:

Reflow Hub Pty Ltd

Email: tradein@reflowhub.com

Address: 119 Willoughby Road, Crows Nest NSW Australia 2065